TIMOTHY TAFADZWA KATSANDE
versus
THE STATE

HIGH COURT OF ZIMBABWE
MUZENDA & SIZIBA JJ
MUTARE, 18 & 23 February 2026

Criminal Appeal

Mr *C. Ndlovu* with *T. Musara,* for the appellant
Ms *T.L Katsiru,* for the respondent

SIZIBA J:

1. This case presents yet another scenario where this court must pronounce itself about the roles, duties, privileges and responsibilities of public prosecutors and all other legal practitioners who appear before the courts of law to represent parties or litigants. The appellant in this case was a public prosecutor at the material time of the case at hand. He took umbrage with the decision of Mutare Magistrates Court (hereinafter referred to as the court *a quo*) wherein he was convicted of a crime of defeating or obstructing the course of justice contrary to s 184(1)(c) of the Criminal Law (Codification and Reform) Act [*Chapter 9*:*23*]. On 24 November 2025, the court *a quo* sentenced the appellant to 12 months imprisonment of which 5 months thereon was suspended on condition of good behavior while the remaining 7 months were wholly suspended on condition of performance of 245 hours of community service. At the conclusion of the hearing in this appeal on 18 February 2026, we were satisfied that the appellant's appeal had merit and we ordered as follows:

   (a) The appeal succeeds.
   (b) The conviction of the appellant is quashed and the sentence is hereby set aside. The order of the court *a quo* is set aside and substituted with the following:

"Both accused persons are found not guilty and acquitted"

FACTUAL BACKGROUND

2. As already alluded to, the appellant was a public prosecutor stationed at Chipinge Magistrates Court. The case at hand emanates from the events which occurred when he was acting within the course and scope of his prosecutorial duties at Chipinge Magistrates Court particularly on 17 January 2025. In the court below, he was jointly charged with a legal practitioner by the name Benjamin Basikiti (hereinafter referred to as appellant's co accused) who had been dragged to the same court to answer the same charges with the appellant and who was acquitted at the end of the trial by the trial court. For purposes of clarity, the charges levelled against these two individuals shall be reproduced below without the names of the minor child who was the subject matter of the charge as well as the alleged offender in question:

"In that on 17 January 2025, and at Chipinge Magistrates Court, Timothy Katsande and Benjamin Basikiti, each or both of them made a false statement in the form of a statement of agreed facts, in connection with a case of rape which was pending before Chipinge Magistrates Court falsifying that a rape victim, ---------- and the rape accused, ---------- had engaged in consensual sexual intercourse contrary to the available evidence which showed that the ---------- had forcibly had sexual intercourse with ---------- intending the statement to prejudice the trial of the Rape case or realising that there was a real risk or possibility that the trial of the Rape case may be prejudiced by the statement."

3. The statement of agreed facts which landed the two lawyers in trouble was couched as follows:

1. Accused and Complainant are not related.

2. The two were in a love affair for less than a week.

3. On 28 December 2024 at around 5pm, the Complainant visited Accused's place of residence.

4. Complainant arrived whilst accused's sister was present.

5. The complainant managed to enter Accused Person's room without knowledge of the Accused Person's sister.

6. The Complainant and Accused Person caressed each other. The two agreed to have sexual intercourse. The Accused mounted the complainant intending to have consensual sexual intercourse with her.

7. During the act, complainant's brother opened the door and witnessed what was transpiring. On the day in question complainant did not tell anyone.
The offence came to light on the 29th of December 2024 at around 2pm when complainant's mother questioned the complainant about what had transpired.
Complainant's mother reported the matter to the police and accused was arrested.

4. The case for the prosecution of the appellant and his co accused was that they falsified that the complainant and the alleged offender had consented to the sexual act contrary to the available evidence which pointed to the contrary. The appellant's co accused was the lawyer representing the alleged offender in the case which gave birth to their prosecution. The alleged offender had initially been charged with the crime of rape but after the statement of agreed facts, the parties settled on the lesser offence under s 70 of the Criminal Law (Codification and Reform) Act [*Chapter 9*:*23*]. (Sexual intercourse with a child between the ages of 12 and 18). The complainant was a juvenile female aged 13 years while the offender was a male adult who was an uncle to the complainant.

5. The State called a total of four witnesses to advance its case against the appellant and his co accused. The first one was the complainant's mother. She testified that her daughter had a medical condition of hardness of hearing and she suffered from speech impediment and she relied on lip reading and hearing aids but not all the time. She said that she did not have any input herself in the reduction of the charge. She also told the court that on the day of the trial, she had been told to avail the complainant in court. Her daughter entered briefly at the appellant's office and when she came out, the appellant asked her whether her daughter was able to talk. The appellant insisted on having fully interviewed the complainant.

6. The complainant testified as a second State witness. She stated that she did not recall being called to the appellant's office. She said nothing of interest and she was not cross examined.

7. The investigating officer was the third witness. She testified that she was asked to avail the complainant on the trial date so that the court could see her. She said that she was

not consulted about the reduction of the charge. When she received the docket after the case was finalized, she noted the reduced charge. The complainant's mother came to her to complain about the issue and she requested a record of proceedings and that is when the appellant and his co accused got into trouble.

8. Mr Dhliwayo the Principal Public Prosecutor at Chipinge Magistrates Court also testified. He told the court that he was at the same office with the appellant and his co accused when they discussed and drafted the agreed facts but he did not participate in the discussion. He told the court that the hitch up in the case had been the statement from the complainant's brother who walked in while the two were having sexual intercourse. He said that the appellant had used his own discretion. Under cross examination, he said that they relied upon averments made by the investigating officer on 31 December 2024. He went on to say that taking account of the victim's age, there had been need to interview the victim and her guardian and also refer the victim to a probation officer to assess the issues relating to consent and capacity to consent.

9. The record of proceedings in the case that resulted in the appellant and his co accused being charged reflects that on 16 January 2025, it is Dhliwayo himself who appeared for the State while appellant's co accused represented the offender. The appellant said that he was not at work on that day. This is the very day when both Mr Dhliwayo and appellant's co accused told the court that there was need for consideration of a partial plea. It was common cause that Dhliwayo had instructed the appellant that there was need for a partial plea upon handing him the case. Dhliwayo also testified that there were some issues that were to be clarified in the matter. The first issue was about the young brother of the victim who found the two having sexual intercourse and he had asked them what they were doing. They needed to clarify if there was any force. The investigating officer needed to clarify what had happened when they got home from the offender's place. Dhliwayo said that he was in the office and he was not aware what the appellant and his co accused were discussing.

10. The appellant's evidence and stance before the court *a quo* was that he was given the docket by Dhliwayo with instructions to note a partial plea. He noted inconsistencies in

the docket which supported a partial plea that his superior had instructed him to accept. The sexual act was witnessed by the complainant's young brother who asked the two what they were doing and they said: "Nothing". There was no immediate report. He further contended that Dhliwayo was an active participant in the compilation of the statement of agreed facts. He accused Dhliwayo of lying under oath. He said that when the case was given to him on 17 January 2025 with the background of what had happened on the previous day, he had thought that all the preliminary issues had been attended to.

FINDINGS MADE BY THE COURT *A QUO*

11. The court *a quo* made a finding that the State had proved the charge against the appellant. It found that the charge against the appellant's co accused had not been proven for the reason that whatever information that he had placed on the statement of agreed facts had been obtained from his client and he had no access to the complainant or her parent. In convicting the appellant, the court *a quo* reasoned that he had a duty to go through the docket and not to have relied on Dhliwayo. It concluded further that the appellant had failed to discharge his duty properly and as a result he had falsified information that the victim consented without establishing it from her and the probation officer. He was accordingly convicted as charged while his co accused was discharged and acquitted.

APPELLANT'S GROUNDS OF APPEAL

1. The learned Magistrate grossly erred and misdirected herself at law when she convicted the appellant on a charge of obstruction or defeating the course of justice when objective evidence did not establish that 'a guilty person escaped conviction' as envisaged by the law.

2. The learned Magistrate further erred and misdirected herself at law when she failed to judicially apply her mind to the undeniable fact that the arrest, prosecution and conviction of a prosecutor for omissions done during the execution of one's duties as

such tears and erodes the sacrosanct and constitutional position of prosecutorial independence and discretion.

3. The learned Magistrate further erred and misdirected herself at law when she failed to realize and appreciate that State witness Mr Dhliwayo was an accomplice and consequently, failed to treat and approach his evidence with the expected and necessary caution.

4. The learned Magistrate further erred and misdirected herself at law and on the facts when she wrongly proceeded with and adjudged the matter as if the appellant had been charged of criminal abuse of public office.

5. The learned Magistrate further erred and misdirected herself at law when she wrongly imputed and placed an onus on the appellant in criminal proceedings where the offence he was facing did not place him a reverse jurisprudential onus on him.

6. The learned Magistrate further erred and misdirected herself on facts when she heavily relied on the so - called concessions which were immaterial and only demonstrated incompetence rather than criminal conduct.

7. The learned Magistrate further erred and misdirected herself on facts when she failed to appreciate that the essential mental and criminal element of intention to defeat or obstruct justice was not proven beyond a reasonable doubt.

SUBMISSIONS BY COUNSEL

12. Appellant's counsels raised a preliminary point that the respondent was barred for having filed heads of argument out of time. The respondent's heads of argument had been filed a day before the hearing date in the afternoon. Respondent's counsel pleaded that she had communicated with appellant's counsel to alert him of her late filing of the heads. We condoned the respondent's late filing of the heads of argument so that we could hear both parties in the interests of justice given the importance of the matter. Ms

Katsiru also raised a preliminary point that the appellant's grounds of appeal were not clear and concise. Mr *Ndlovu* and Mr *Musara* maintained that their grounds of appeal were in order. We were in agreement with Ms *Katsiru* in respect of the rest of the grounds of appeal save for ground number 7. Accordingly, the issue before us was whether the charge against the appellant had been proven beyond reasonable doubt in so far as the mental element was concerned. On the merits, appellant's counsels elected to abide by their heads of argument while State counsel submitted that the prosecution had managed to prove the charge before the court *a quo* as highlighted more fully in their heads of argument.

THE LAW AND ITS APPLICATION

13. Public prosecutors in Zimbabwe derive their mandate to prosecute from the Prosecutor General and the principles governing both the Prosecutor General and public prosecutors are spelt out under ss 260 and 261 of the Constitution of Zimbabwe respectively as follows:

> *"**260 Independence of Prosecutor-General***
> *(1) Subject to this Constitution, the Prosecutor-General—*
> *(a) is independent and is not subject to the direction or control of anyone; and*
> *(b) must exercise his or her functions impartially and without fear, favour, prejudice or bias.*
> *(2) The Prosecutor-General must formulate and publicly disclose the general principles by which he or she decides whether and how to institute and conduct criminal proceedings.*
> ***261 Conduct of officers of National Prosecuting Authority***
> *(1) The Prosecutor-General and officers of the National Prosecuting Authority must act in accordance with this Constitution and the law.*
> *(2) No officer of the National Prosecuting Authority may, in the exercise of his or her functions—*
> *(a) act in a partisan manner;*
> *(b) further the interests of any political party or cause;*
> *(c) prejudice the lawful interests of any political party or cause; or*
> *(d) violate the fundamental rights or freedoms of any person.*
> *(3) Officers of the National Prosecuting Authority must not be active members or office-bearers of any political party or organisation.*
> *(4) An Act of Parliament may make further provision to ensure the political neutrality of officers of the National Prosecuting Authority."*

14. Furthermore, s 12 of the National Prosecuting Authority Act [*Chapter 7*:*20*] provides as follows:

*"**12 Power to institute and conduct criminal proceedings***
(1) The Prosecutor-General—-
(a) shall institute and conduct criminal proceedings on behalf of the State; and
(b) shall carry out any necessary functions incidental to instituting and conducting such criminal proceedings; and
(c) may discontinue criminal proceedings; and
(d) shall issue certificates nolle prosequi in accordance with the Criminal Procedure and Evidence Act [Chapter 9:07], to persons intending to institute private prosecutions, where the Prosecutor-General chooses not to prosecute; and
(e) perform such other functions as are conferred or imposed upon him or her by or in terms of this Act or any other enactment.
(2) The Prosecutor-General may assign any duty referred to in subsection (1) to a Deputy Prosecutor-General subject to the control and directions of the Prosecutor-General.
[Subsection amended by Act 7 of 2020]
(3) Subject to the Constitution and this Act, a member shall, subject to the control and directions of the Prosecutor-General, exercise the powers referred to in subsection (1), in respect of—
(a) the area of jurisdiction for which he or she has been appointed; and
(b) any offences which have not been expressly excluded from his or her jurisdiction, either generally or in a specific case, by the Prosecutor-General.
(4) A member shall be competent to exercise any of the powers referred to in subsection (1), to the extent that he or she has been authorised thereto in writing by the Prosecutor-General, or by a person designated by the Prosecutor-General.
(5) The written authorisation referred to in subsection (4), shall set out—
(a) the area of jurisdiction; and
(b) the offences; and
(c) the court or courts in respect of which such powers may be exercised, in the form set out in the Third Schedule."

15. What the above legal provisions spell out is clear. A public prosecutor in a given station is a representative of the Prosecutor General as a member of the National Prosecuting Authority. He or she is the Prosecutor General's authorized agent who is lawfully mandated to do what the Prosecutor General is required to do at that station in terms of the Constitution of Zimbabwe. He or she is bound to act according to the law as an officer of the court. This does not take away the fact that he or she works under the supervision of his or her superiors in rank or administration. Like all other court officers, his or her first duty is owed to the court in terms of being expected to do what is just and lawful to the best of his or her ability in every case that he or she prosecutes. A public prosecutor or legal practitioner who misleads a court of law on facts or on the position of the law in order to win a case or gain an outcome or result that favors the party or litigant that he or she represents is unethical.

16. The following remarks by my brother CHITAPI J in *Kasukuwere* v *Mujaya and Others* HH 562/19 at p 15 of the cyclostyled judgment are apposite:

> *"A criminal trial is not a game of hide and seek but a pursuit for justice. See S v Godfrey Gandawa and 2 Others HH 478/18; S and Anor v Machaya and 7 Others HH 442/19. The State must be open to the defence by advising of the evidence to be adduced and documents to be produced. For the State to withhold relevant information even when requested to and for the trial court to endorse the illegality of withholding evidence on the basis that it is a triable issue would offend fair hearing rights of an accused and clearly would be unconstitutional."*

17. Moreover, in *Revesai* v *The State* HB 135/17 at pp 3 to 5 of the cyclostyled judgment, MATHONSI J (as he then was) made the following elaborate remarks over the conduct of public prosecutors and other court officers:

"Clearly in Zimbabwe we have the legal instruments defining the rights of suspects and also empowering law officers to act in a certain manner when handling criminal suspects. Those legal instruments, some of which I have just cited, give police officers the discretion to detain as well as to release and to even decline to take suspects to court, if they entertain a doubt that a criminal offence has been committed. The same applies to public prosecutors. A public prosecutor at a set down office to whom dockets are lodged by police officers after investigations, has a right to assess the evidence and decide whether there is a case to prosecute or not. If, in the opinion of the public prosecutor at set down, there is no evidence in the docket upon which a successful prosecution may be undertaken, it is within the discretion of the public prosecutor to decline to prosecute. A decision to decline to prosecute does not amount to abuse of office by the public prosecutor because he or she has the authority to make that decision.

I am saying all this because quite often in contemporary history public officers have been reduced to robots or automatons, machines without feelings or senses to make informed decisions on criminal prosecutions. A police officer will jump to handcuff a person and drag them to a police station where the person is promptly locked up in cells merely because a member of the public has filed a report against the unfortunate person. So you have a situation where a police officer does not bother to form an independent opinion about the matter or to even begin to entertain a reasonable suspicion against the suspect but will merely detain the person because a civilian has said so.

Having detained the person, quite often no meaningful investigation is carried out beyond making a charge and recording a warned and cautioned statement from the suspect, taking the suspects fingerprints and then escorting him or her to court even where the arresting detail does not believe that an offence has been committed. Once in court, the public prosecutor reposed with the duty to assess the strength or otherwise of the case against the suspect abdicates that duty by simply rubber stamping and sending the suspect for initial remand. Undeserving cases are processed all the way to court and at times innocent people end up in custody while awaiting trial because the system is adulterated and those charged with the responsibility to vet cases do not bother to do so.

In my view it is that kind of laziness and at times timidness and reluctance to make correct decisions even when authority is bestowed on public officers, which is an abuse of duty, a case of omitting to act in a proper manner. The net effect of that is an insurmountable backlog of cases in the courts which should not be there at all. By the time courts of law find time to try those cases

and discover they are no cases at all, they would have remained in the system as backlog for ages and innocent people would have been inconvenienced and their lives affected unnecessarily."

18. In the matter at hand, the appellant and his co accused were both officers of the court. The appellant was tasked to prosecute a case of rape and given instructions by Mr Dhliwayo who was his superior to consider a partial plea of an offence under s 70 of our Criminal Code. After going through the docket, he formulated an opinion that the facts or evidence on the docket could only support a case under s 70 against the accused. He explained the basis of his decision by the fact that the complainant had not reported the case. The brother who walked in while the two were having sexual intercourse asked both what they were doing and they said: "Nothing". The court *a quo* did not make a finding of fact that this information or statement which was alleged to be in the docket was false or not there and neither did the court *a quo* make a finding that it was false that the complainant had entered the offender's room without the knowledge of the offender's sister. From the facts that were placed before the court *a quo,* it is the mother of the complainant who reported the case. What the court found to be false was merely the fact that the complainant had consented to the sexual act. This is what the charge alleges. The court *a quo* does not seem to have considered that the concept of consent is both a factual issue and a legal issue as well. It did not dawn to the court *a quo*'s mind again that even if lack of consent is alleged, it is a different issue altogether whether such lack of consent will be proven from the available evidence in the docket. Most importantly, the court *a quo* does not seem to have been awake to the fact that a statement of agreed facts is a product or version of two parties to litigation whereby both sides would want to include what they deem material to their case according to their side or version. It then defies logic for the appellant to be blamed for the allegedly "false" contents of the agreed facts while his co accused was exonerated on the irrational basis that his contribution was his client's version as if such version which he had contributed had been expunged from the agreed facts that he also signed. It is equally illogical that Dhliwayo, the very person who first came up with the opinion that the partial plea could work out was also exonerated from taking any responsibility over the whole outcome. The court *a quo* was made to believe that this Dhliwayo did not have an input in the contents of the agreed facts when his version

was clearly fanciful and too good to be true on this aspect. He obviously wanted to escape liability and he would have been an accomplice who was not admonished prior to his testimony in court.

19. Most disturbingly, the court *a quo*'s finding that the appellant had failed to discharge his duties properly by making a false statement that the complainant had consented when he had not established it from the record does not suffice to meet the threshold for the mental element of the crime which the appellant was facing. S 184 (1)(c) of the Criminal Law (Codification and Reform) Act [*Chapter 9*:*23*] provides as follows:

> *"**184 Defeating or obstructing the course of justice***
> *(1) Any person who−*
> *(a) -----*
> *(b) -----*
> *(c) makes any statement, whether written or oral, in connection with any case which is pending before a court, intending the statement to prejudice the trial of the case, or realising that there is a real risk or possibility that the trial of the case may be prejudiced by the statement;*"

20. From the above provision, a clear distinction must be drawn between a statement which is made with an intention to prejudice the trial of a case and a statement that comes by as a result of a mistake or one that comes by as a result of mere failure to discharge one's duties. It is not the intention of the law to punish incompetence under this provision. Nothing further was alleged to demonstrate an improper or corrupt motive on the part of the appellant. It was not alleged or proven that he intended a favorable outcome to the offender in question. There is no rational basis why he was found guilty of having made a statement with intent to prejudice a trial. The very prejudice itself was not demonstrated because it was not alleged and proven that the available evidence would have secured a 'better' verdict of rape than what was achieved. In any event going by what Mr Dhliwayo indicated as well about the loopholes which were apparent in the docket, it would have been hard if not an exercise in futility to have tried the offender for a charge of rape where there was a statement of one who claimed that both of them denied that they were doing something whilst they were engaged in the sexual act.

21. What is very much disturbing in this case is that there seems to be a notion that a public prosecutor should not consider or accept a partial or limited plea when the complainant or his or her guardian or parent or investigating officer or probation officer is not consenting to such. This notion is wrong and it not only makes a public prosecutor a mere robot in court but it strips him or her of his or her critical function as an officer of the court. Sight should not be lost to the fact that public prosecutors are lawyers in their own right who possess enough legal expertise and wisdom to assist a court of law. Although private and State attorneys, advocates and public prosecutors are not privileged to exercise judicial functions, they possess enough expertise, skills and sometimes even experience to accurately predict the outcome of a case from their application of legal principle to the available facts and hence if they are discouraged from approaching a court from the same perspective where such is necessary, the court will not derive benefit from their expertise. To discourage plea bargaining by placing undue criminal sanctions on public prosecutors and private attorneys who are not proven to be acting corruptly is to burden the court with unnecessary backlog out of cases which could be settled easily in the shortest possible time. A public prosecutor is a professional whose mandate is clearly marked out in the law. He or she is not a messenger or a puppet of a complainant or an investigating officer. The duty of the complainant is to give a statement about what their complaint is all about to the police. The investigating officer's duty is to investigate and place facts and evidence before the public prosecutor. It will be a sad scenario if public prosecutors will always push for the most serious crime when their opinion from the available evidence is that a lesser offence was committed especially given that most citizens of this country do not afford legal practitioners. This is not to say that there should be no consultation between a public prosecutor and his or her superiors but those are internal and administrative protocols which should not result in criminal allegations of this nature.

22. Mr Dhliwayo kept saying that the appellant used his discretion. The question which then arises is when has wrong exercise of one's discretion as a professional become a crime. If wrong discretion or misdirection on facts or law is now a crime in our law, then every public prosecutor, practicing legal practitioner, magistrate and judge will

sooner or later find himself or herself in hot soup like what befell the appellant and his co accused. Law would then cease to be a noble profession and all those who would want to remain noble would exit the profession. The fate that befell the appellant and is co accused raises a lot of issues. One wonders whether a prosecutor who concedes to bail and says that an accused person is not a flight risk would not be arrested if it turns out that that was not the case when the suspect has vanished after being released on bail. Surely the precedent set in the conviction of the appellant by the court *a quo* is wrong at law. Section 184(1)(c) of the Criminal Law (Codification and Reform) Act does not contemplate a scenario of this nature as being an obstruction to or defeating the course of justice.

23. It is therefore on the basis of the above considerations that we found it proper to interfere with the decision of the court *a quo*. The appellant's conviction was not safe. The mental element of the crime was not proven. He was penalized for his discretion and professional opinion when it was not demonstrated that he had the intention to defeat the course of justice. These are the reasons why we made an order for the success of the appeal as articulated above.

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MUZENDA J agrees

Gonese & Ndlovu, appellant's legal practitioners
National Prosecuting Authority, respondent's legal practitioners